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|   |                                               | <p>interrogatories, set 2, and requests for production of documents, set 2, are also continued to May 19, 2025 at 1:30 pm in Dept. C13.</p> <p>Plaintiff's proofs of service are defective.</p> <p>The motions were e-served, but the sender's email address was not included per Code Civ. Proc., § 1013b(b)(1), which provides that proof of electronic service shall include "[t]he electronic service address and the residence of business address of the person making the electronic service." No oppositions have been served. Thus, the Court is unable to verify that Defendants received notice of Plaintiff's motion.</p> <p>In addition, the Court notes that Defendant Sodexo, Inc. has a pending motion for relief from waiver of objections related to this same discovery set for May 19, 2025. The interests of judicial economy will best be served if all motions are heard on the same day.</p> <p>Plaintiff is ordered to file and serve proofs of service that comply with Code Civ. Proc., § 1013b(b)(1) for all motions, as well as give notice of this ruling, and file proof of service of same no later than five court days prior to the continue hearing date.</p>                                                                                                                                             |
| 8 | <p>Phillips vs. Deis</p> <p>2024-01373420</p> | <p>Motion for Determination of Good Faith Settlement</p> <p>On cross-defendant Harbor Ridge Association's motion for good faith settlement determination, the court notes that Cross-Defendant's proof of service does not comply with Code Civ. Proc. §1013b(b)(3) as it does not show the email address from which email service was made. [ROA #133.] Subject to Cross-Defendant filing a corrected proof of service by the time of the hearing, the court is prepared to grant the motion. Otherwise, the hearing will be continued to 6-23-2025 at 1:30 p.m..</p> <p><b>Good Faith Settlement Law</b><br/> Section 877.6 applies to a settlement between a plaintiff and an alleged tortfeasor. Cal. Code Civ. Proc. § 877.6(a)(1). Section 877.6 allows a settling defendant to obtain a determination that his settlement is in good faith, and thus to bar action for contribution or indemnity by the remaining tortfeasors. Cal. Code Civ. Proc. § 877.6(c). The word alleged means the defendant need not be found liable; the plaintiff's allegations are sufficient. <i>Hartford Acc. &amp; Indem. Co. v. Superior Court</i> (1995) 37 Cal. App. 4<sup>th</sup> 1174, 1179.</p> <p>A written settlement agreement need not be executed and presented with the motion for good faith settlement determination so long as the</p> |

court and all the parties are timely advised of the important terms of the settlement. *Alcal Roofing and Insulation v. Superior Court* (1992) 8 Cal. App. 4<sup>th</sup> 1121, 1127.

As to the good faith determination itself, there is no precise yardstick for measuring “good faith” of a settlement with one of several tortfeasors. But it must harmonize the public policy favoring settlements with the competing public policy favoring equitable sharing of costs among tortfeasors. To accomplish this, the settlement must be within the “reasonable range” (within the “ballpark”) of the settling tortfeasor’s share of liability for the plaintiff’s injuries. *Tech-Bilt, Inc. v. Woodward-Clyde & Assoc.* (1985) 38 Cal. 3d 488, 499.

The determination whether a settlement is “within the ballpark” must be based on information available at the time of settlement. *Tech-Bilt, Inc. v. Woodward-Clyde & Assoc.*, 38 Cal. 3d at 499 (“[P]ractical considerations obviously require that the evaluation be made on the basis of information available at the time of settlement.”). *See also Cahill v. San Diego Gas & Electronic Company* (2011) 194 Cal. App. 4<sup>th</sup> 939, 962-64 (finding settlement reasonable based on facts understood and claims asserted at time of settlement).

The California Supreme Court in *Tech-Bilt v. Woodward-Clyde & Assoc.*, 38 Cal. 3d 488 (1985), set forth the factors to determine good faith. The factors are: (1) a rough approximation of plaintiffs’ total recovery and the settlor’s proportionate liability; (2) the amount paid in settlement; (3) the allocation of settlement proceeds among plaintiffs; (4) the recognition that a settlor should pay less in settlement than he would if he were found liable after a trial; (5) the financial conditions and insurance policy limits of settling defendants; (6) the existence of collusion, fraud or tortious conduct aimed to injure the interests of nonsettling defendants. *Tech-Bilt*, 38 Cal. 3d at 499-500.

The most important factor is the settling party’s proportionate liability. *Mattco Forge, Inc. v. Arthur Young & Co.*, 38 Cal. App. 4<sup>th</sup> 1337, 1350 (1995). A court must consider not only the settlor’s potential liability to the plaintiff, but also its proportionate share of culpability as among all parties alleged to be liable for the same injury. *TSI Seismic Tenant Space, Inc. v. Superior Court*, 149 Cal. App. 4<sup>th</sup> 159, 166 (2007). Because a good faith determination bars indemnity claims by non-settling parties, the true value of the settlement to the settlor may not be the amount paid to the plaintiff, but rather the value of the shield against such indemnity claims. *Id.* at 166-67.

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|           |                                               | <p>Under the statute, the burden of proof is on the party opposing the good faith determination. Cal. Code Civ. Proc. § 877.6(d). Thus, where the nonsettling defendants do not oppose a motion for good faith settlement determination on the good faith issue, “a barebones motion which sets forth the ground of good faith, accompanied by a declaration which sets forth a brief background of the case is sufficient.” <i>City of Grand Terrace v. Superior Court</i> (1987) 192 Cal. App. 3d 1251, 1261. In other words, only when the application is contested or motion for good faith determination is opposed need the court consider and weigh the <i>Tech-Bilt</i> standards. <i>Id.</i></p> <p><b>Application</b></p> <p>Here, there is no evidence as to the amount of damages/cost of repair claimed by Plaintiffs based on the condition of the house or what settlement demands they have made. Nonetheless, Cross-Defendant has made a persuasive showing that its proportionate liability, if any, is minimal. [Ayotte Decl., ¶¶ 5-6, 8-11 and Ex. 1.]</p> <p>In the absence of any challenge, a “barebones motion which sets forth the ground of good faith, accompanied by a declaration which sets forth a brief background of the case, is sufficient.” <i>City of Grand Terrace v. Superior Court</i> (1987) 192 Cal.App.3d 1251, 1261-1262 (“The ultimate determinant of good faith in whether the settlement is grossly disproportionate to what a reasonable person at the time of the settlement would estimate settlor’s liability to be.”); Cal. Prac. Guide: Civ. Proc. Before Trial at § 12:871.</p> <p>Accordingly, if proper service is shown by a complete proof of service, the court is prepared to grant Cross-Defendants’ unopposed motion for good faith settlement determination and sign its proposed order.</p> |
| <b>9</b>  | <p>Solis vs. Jordan</p> <p>2024-01411870</p>  | <p><b>1.</b> Motion to Compel Answers to Form Interrogatories<br/> <b>2.</b> Motion to Compel Answers to Special Interrogatories<br/> <b>3.</b> Motion to Compel Production<br/> <b>4.</b> Motion to Compel Response to Requests for Admissions</p> <p><b>Off Calendar</b></p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                              |
| <b>10</b> | <p>Torres vs. Alcala</p> <p>2023-01324923</p> | <p>Motion to Strike or Tax Costs</p> <p>Plaintiffs Marty Torres and Carlos Martinez (collectively, “Plaintiffs”) seek an order striking a memorandum of costs, or alternatively, taxing certain costs. Plaintiffs also request Frank Granato and Financial Center West, Inc. pay Plaintiffs \$1,060.</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                    |